

GOVERNMENT OF INDIA STATUTORY REGULATORY REPOSITORY

AYURLEX COMPLIANCE HANDBOOK — TKDL BIOPIRACY DEFENSE & WHO QUALITY STANDARDS

8. TKDL Biopiracy Defense & WHO Quality Standards

Domain Identifiers: tkdl, who | Joint Framework: CSIR, Ministry of Ayush & World Health Organization

Traditional Knowledge Digital Library (TKDL) Prior Art Shield:

- **Repository Scale:** 34 million pages of codified ancient Ayurvedic, Unani, and Siddha texts transliterated into 5 international patent languages mapped to IPC via Traditional Knowledge Resource Classification (TKRC).
- **Landmark Case 1 — Revocation of US Patent 5,401,504 (Turmeric):** USPTO granted a patent on turmeric for wound healing. CSIR submitted ancient Ayurvedic slokas proving prior art; patent revoked entirely.
- **Landmark Case 2 — Revocation of EPO Patent 0436257 (Neem):** EPO revoked a patent on fungicidal neem extract after CSIR presented ancient Ayurvedic citations.
- **Pre-Grant Opposition:** Patent examiners at USPTO, EPO, JPO, and CGPDTM consult TKDL under non-disclosure agreements, preemptively rejecting biopiracy claims.

WHO Guidelines for Herbal Quality & Export COPP:

- **WHO Guidelines:** Standardizes maximum permissible limits for contaminants, pesticide residues, aflatoxins, and radioactive substances in finished herbal medicines.
- **WHO-COPP (Certificate of Pharmaceutical Product):** Statutory certification scheme administered by DCGI / State Licensing Authority enabling export of Ayurvedic products conforming to WHO GMP to 100+ countries.

Optimal RAG Queries for this Dataset:

1. 'How does TKDL protect ancient Ayurvedic formulations from foreign patenting?' → Returns TKRC classification and Turmeric/Neem case laws.
2. 'How do I obtain a WHO-COPP certificate for Ayurvedic drug export?' → Returns DCGI / SLA inspection workflow.